Supreme Court, U.S.
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No. 97-82

In the Supreme Court of the United States

OCTOBER TERM, 1996

LANCE E. LINDBLOM, PETITIONER

v.

FEDERAL BUREAU OF INVESTIGATION

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF COLUMBIA CIRCUIT

BRIEF FOR THE RESPONDENT IN OPPOSITION

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17 pp

QUESTION PRESENTED

Whether maintenance by the Federal Bureau of Investigation of information relating to petitioner, collected pursuant to an authorized law enforcement activity, violates subsection (e)(7) of the Privacy Act of 1974, 5 U.S.C. 552a(e)(7).

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OPINIONS BELOW

The opinion of the court of appeals (Pet. App. 1a-19a) is reported at 102 F.3d 600. The order of the district court (Pet. App. 20a) is unreported.

JURISDICTION

The judgment of the court of appeals was entered on December 24, 1996. A petition for rehearing was denied on April 11, 1997. Pet. App. 21a-22a. The petition for a writ of certiorari was filed on July 10, 1997. The jurisdiction of this Court is invoked under 28 U.S.C. 1254(1).

STATEMENT

1. The Privacy Act of 1974, 5 U.S.C. 552a, regulates the collection, maintenance, use, and dissemination of personal information by federal government agencies. The Act provides, *inter alia*, that individuals may seek access to and amendment of records pertaining to them. At issue in this case is subsection (e)(7) of the Act, which states that an agency shall "maintain no record describing how any individual exercises rights guaranteed by the First Amendment unless expressly authorized by statute or by the individual about whom the record is maintained or unless pertinent to and within the scope of an authorized law enforcement activity." 5 U.S.C. 552a(e)(7).[1]

2. Petitioner Lance Lindblom, then president of the J. Roderick MacArthur Foundation, filed Freedom of Information Act (FOIA) and Privacy Act requests with the Federal Bureau of Investigation (FBI or Bureau) headquarters and its New York, Chicago, and Washington, D.C., field offices for information maintained about him. C.A. App. 21-26, 40-41. The FBI located 23 documents responsive to petitioner's request. C.A. App. 111, ¶ 19. Those documents included a total of 36 pages, of which 13 were duplicates. *Ibid.*; see Pet. App. 2a. The Bureau "released redacted copies of several of the documents relating to [petitioner] and the Foundation but refused to release

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[1] Subsection (a)(3) of the Act states that "the term 'maintain' includes maintain, collect, use, or disseminate." 5 U.S.C. 552a(a)(3).

others, invoking exemptions 1, 2, 7(C), and 7(D) to the FOIA." *Id.* at 3a.[2]

3. Following exhaustion of his administrative appeals, petitioner filed this action in federal district court, invoking both the Privacy Act and the FOIA. Petitioner sought release of the information in his files, a declaratory judgment that the FBI's maintenance of files concerning his First Amendment activities is unlawful, an order expunging the files, an injunction against maintaining such files in the future, and damages. C.A. App. 10. The FBI filed a motion to dismiss or in the alternative for summary judgment, supported by the declarations of Special Agents (SAs) Earl Pitts and Angus Llewellyn. Those declarations described, *inter alia*, the FBI's filing system, the nature of the responsive documents, and the nature of the investigation(s) that generated the documents. See C.A. App. 59-76, 96-126.

SA Pitts stated that the investigative activity that had produced the responsive records at issue here was conducted pursuant to the FBI's responsibilities under Section 1.14 of Executive Order No. 12,333, see 46 Fed. Reg. 59,941 (1981), which provides presidential guidance concerning United States intelligence activities. C.A. App. 72, ¶ 24. He stated as well that the pertinent investigation(s) had been conducted in

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[2] The FOIA exemptions invoked by the Bureau in this case protect classified information, 5 U.S.C. 552(b)(1); the agency's internal personnel rules and practices, 5 U.S.C. 552(b)(2); and information compiled for law enforcement purposes that could, if disclosed, reasonably be expected to constitute an unwarranted invasion of privacy, 5 U.S.C. 552(b)(7)(C), or disclose the identity of a confidential source, 5 U.S.C. 552(b)(7)(D). The petition for a writ of certiorari does not present any issue involving the construction or implementation of the FOIA.

accordance with the Attorney General Guidelines for FBI Foreign Intelligence Collection and Foreign Counterintelligence Investigations. C.A. App. 72-73, ¶ 26. SA Pitts further explained that identification of a person or organization as the "subject" of an FBI file does not necessarily imply that the subject has done anything unlawful. Rather, the "subject" can include "victims, property or other targets of an unlawful or covert scheme, or a body of information in which the FBI has a law enforcement or counterintelligence interest." C.A. App. 69-70, ¶ 21.

4. On September 1, 1995, the district court conducted an *ex parte in camera* examination of the withheld documents. C.A. App. 248. On September 6, 1995, the court entered its final order granting the FBI's motion for summary judgment and dismissing the action. Pet. App. 20a. The court concluded that "the FOIA exemptions claimed were properly invoked; that the documents were compiled for legitimate law enforcement purposes; and that the investigation(s) referred to therein were not *of* [petitioner], but of others with whom [petitioner] came into incidental (and, to appearances, innocent) contact." *Ibid.*

5. The court of appeals affirmed. Pet. App. 1a-19a.

a. The court first analyzed the text of subsection (e)(7) and rejected petitioner's argument that retention of information collected in the course of legitimate law enforcement activities must be justified as pertinent to a current or active investigation. Pet. App. 6a. Under the terms of the Privacy Act, the court observed, an agency record may be retained so long as it is "[1] pertinent to and [2] within the scope of an authorized law enforcement activity." *Ibid.* (quoting 5 U.S.C. 552a(e)(7)). The court stated that

"'an authorized law enforcement activity' such as foreign counter-intelligence, is a concept far broader than either an active investigation or a 'current law enforcement necessity.'" *Ibid.* The court also pointed out that "[i]nformation that was pertinent to an authorized law enforcement activity when collected does not later lose its pertinence to that activity simply because the information is not of current interest (let alone 'necessity') to the agency." *Id.* at 7a.

b. The court also analyzed the practical consequences that would flow from acceptance of petitioner's interpretation of subsection (e)(7). It concluded that petitioner's proposed approach "would place new and daunting burdens, both substantive and administrative, upon the FBI and other government agencies, with little or no gain to individual privacy." Pet. App. 8a. The court noted that "intelligence gathering is akin to the construction of a mosaic," in that "the full import of a single piece" of evidence may become clear only when that evidence is considered in combination with other information. *Ibid.* (internal quotation marks omitted). Because "information that was once collected as part of a now-closed investigation may yet play a role in a new or reopened investigation," a requirement that records of closed investigations must be purged could hamper subsequent investigative efforts. *Id.* at 9a.

The court observed as well that responding to requests to purge files under petitioner's theory "could be difficult and time-consuming," particularly because "[t]he agency would have to inquire of all its local offices and the offices of all other investigatory agencies whether there is a current law enforcement necessity for a particular record." Pet. App. 9a.

Those burdens, the court stated, would not contribute substantially to individual privacy, since the FBI is prohibited in any event from disclosing to the public information contained in its files. *Ibid.* The court concluded that "Section (e)(7) of the Privacy Act does not by its terms require an agency to show that the information in its files relating to the first amendment activities of an individual is pertinent to a 'currently' authorized law enforcement activity, and we find nothing in the structure or purpose of the Act that would suggest such a reading." *Id.* at 14a.[3]

Judge Tatel dissented with respect to the Privacy Act ruling. See Pet. App. 15a-19a. Consistent with petitioner's proposed construction of subsection (e)(7), Judge Tatel concluded that "if there is no *current* law enforcement activity to which a record has pertinence, the agency may not maintain it." *Id.* at 15a.[4]

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[3] The court also held that the district court had not abused its discretion in denying discovery, since the documents petitioner sought were largely classified and the district court's *in camera* examination of the withheld information informed its decision that discovery was not necessary to its ruling on the FBI's motion for summary judgment. Pet. App. 10a-11a. In addition, the court held that neither petitioner nor the MacArthur Foundation had standing to raise a First Amendment claim because neither had shown injury resulting from the FBI's maintenance of information about them. *Id.* at 11a-14a. Petitioner does not challenge those rulings here.

[4] Shortly before the court of appeals issued its ruling, it was disclosed that SA Pitts, who had submitted a declaration in support of the government's summary judgment motion, had been arrested for espionage. (Pitts later pleaded guilty to that charge.) The government brought Pitts's arrest to the court's attention on December 23, 1996. The court issued its decision the next day; its opinion contained no reference to the Pitts

ARGUMENT

Petitioner contends that the information in his file, while properly collected in the first instance, may not be retained by the FBI unless it is pertinent to a "current law enforcement activity," Pet. 12, by which he appears to mean an active or ongoing investigation. That claim lacks merit. The decision of the court of appeals is correct and does not conflict with any decision of this Court or of any other court of appeals. Further review is not warranted.

1. The court of appeals' decision is consistent with the language of the Privacy Act. Subsection (e)(7) requires only that agency records describing expressive and associational activities protected by the First Amendment must be pertinent to and within the scope of an "authorized law enforcement activity."

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declaration or to any other declaration in the record. In response to petitioner's petition for rehearing with suggestion of rehearing in banc, the government noted, *inter alia*, that other record evidence (including copies of the redacted documents) supported the government's position and that both the district court and the court of appeals had examined the documents *in camera*.

Petitioner also sought relief in the district court pursuant to Rule 60(b), Fed. R. Civ. P. In opposing that motion, the government submitted additional declarations of other FBI agents who had independently reviewed the records at issue here. Those declarants reaffirmed SA Pitts's descriptions of the general manner in which counterintelligence activities are carried out, and they confirmed that the records in question had been collected pursuant to an authorized counterintelligence activity. The court of appeals denied rehearing and rehearing in banc on April 11, 1997. Four days later, petitioner withdrew his Rule 60(b) motion. The petition for a writ of certiorari does not raise any issue related to SA Pitts's arrest and conviction.

5 U.S.C. 552a(e)(7). As the court of appeals recognized, that concept is far broader than "current law enforcement necessity" or active law enforcement investigation. See Pet. App. 6a. Petitioner does not deny that the investigative activities that generated the records at issue here were "authorized" at the time they were conducted. It is clear, moreover, that the records remain "pertinent to and within the scope of" the investigation(s) that produced them. See *id.* at 6a; see also *id.* at 7a ("Information that was pertinent to an authorized law enforcement activity when collected does not later lose its pertinence to that activity simply because the information is not of current interest (let alone 'necessity') to the agency."). The court of appeals was therefore correct in holding that the Bureau had satisfied the statutory requirements for maintenance of the information in petitioner's file.[5]

Contrary to the contentions of petitioner and the dissenting judge (see Pet. 13; Pet. App. 15a), the court of appeals' interpretation of subsection (e)(7) does not render the word "maintain" superfluous. Where records describing First Amendment activity are not

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[5] The Federal Records Act of 1950, 44 U.S.C. 3101 *et seq.*, requires federal agencies to create and maintain records that adequately and properly document the agency's organization, functions, policies, decisions, procedures, and transactions. See *American Friends Serv. Comm.* v. *Webster*, 720 F.2d 29 (D.C. Cir. 1983). Thus, retention of records pertinent to authorized law enforcement activities serves to document the agency's performance of its official functions as well as to facilitate future investigative endeavors. To require the FBI to expunge or destroy a lawfully-created record of its legitimate, authorized law enforcement activities would be at odds with basic federal recordkeeping principles.

collected pursuant to any authorized law enforcement activity, subsection (e)(7) makes clear that an agency's retention of those records is a continuing Privacy Act violation. Inclusion in the Act of the word "maintain" does not, however, affect the inquiry into whether particular records are "pertinent to and within the scope of an authorized law enforcement activity." 5 U.S.C. 552a(e)(7).[6]

2. As the court of appeals explained, acceptance of petitioner's position "would place new and daunting burdens, both substantive and administrative, upon the FBI and other government agencies." Pet. App. 8a. The substantive burdens would be particularly acute in areas, such as counterintelligence, that require federal law enforcement agencies to take both a broad and temporally long view in examining isolated events in relation to other events. This Court has explained that "the very nature of the intelligence

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[6] It is not clear, moreover, that petitioner would prevail in this case even if subsection (e)(7) were construed to require pertinence to a "current" law enforcement activity. As the district court noted, the investigation(s) that produced the documents at issue here "were not *of* [petitioner], but of others with whom [petitioner] came into incidental (and, to appearances, innocent) contact." Pet. App. 20a. Thus, even if petitioner's proposed construction of subsection (e)(7) were accepted, the Bureau would not be required to demonstrate that it is currently investigating petitioner himself. Rather, it would suffice to show that the FBI is currently conducting *some* investigative activity as to which the existing file might be relevant. The record in this case indicates that while some of the "targets and subjects of the intelligence activities and methods detailed in the information at issue may not be of present interest to the FBI, certain individuals and organizations are currently of investigative interest to the FBI." C.A. App. 66, ¶ 13.

apparatus of any country is to try to find out the concerns of others; bits and pieces of data may aid in piecing together bits of other information even when the individual piece is not of obvious importance in itself." *CIA* v. *Sims*, 471 U.S. 159, 178 (1985) (internal quotation marks omitted). Accord, *e.g.*, *In re United States*, 872 F.2d 472, 475 (D.C. Cir.) ("[T]he business of foreign intelligence gathering in this age of computer technology is more akin to the construction of a mosaic than it is to the management of a cloak and dagger affair. Thousands of bits and pieces of seemingly innocuous information can be analyzed and fitted into place to reveal with startling clarity how the unseen whole must operate."), cert. dismissed, 493 U.S. 960 (1989).

Petitioner argues (see Pet. 10-11, 18) that the "mosaic" theory cannot be used to justify retention of information for which no presently articulable need exists. As the court of appeals recognized, however, the Bureau's ability to carry out its functions would be impaired if it were required to purge investigative records for which no current necessity could be demonstrated. Because the significance of particular information often cannot be appreciated until it is viewed in combination with other data, "information that was once collected as part of a now-closed investigation may yet play a role in a new or reopened investigation. If the earlier record had been purged, however, then the agency's later investigation could not be informed by the earlier event(s)." Pet. App. 9a.[7]

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[7] In the court of appeals, petitioner "particularly object[ed] to the FBI's maintenance of the relevant records in a file retrievable by his name." Pet. App. 10a. A rule that would prevent cross-indexing, however, would be unworkable and

The administrative burdens imposed by petitioner's approach would also be severe. Law enforcement agencies necessarily compile voluminous investigative records that are created in full compliance with the requirements of subsection (e)(7). To require the agencies continually to review those records, and to purge records not pertinent to "current" investigative activities, would impose enormous and unworkable burdens. To determine whether a "current law enforcement necessity" existed to justify retention of information, the Bureau would be required to consult with all of its field offices and with other law enforcement and investigative agencies. The court of appeals correctly declined to attribute to Congress an intent to "require[] so formidable an undertaking." Pet. App. 9a.[8]

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would frustrate efficient law enforcement. See C.A. App. 70, ¶ 21 (declaration of SA Pitts states that the "concept of the subject of an investigation is necessary to coordinate nationwide enforcement efforts and to quickly locate records using only small bits of information").

[8] A requirement that agency files be purged if no current necessity exists could also result in new (and duplicative) investigations when the need for the information becomes apparent. To require law enforcement agencies to re-conduct prior investigations would waste scarce agency resources and impose unnecessary burdens on persons who are the subjects of the investigation.

As the court of appeals observed, moreover, acceptance of petitioner's interpretation of subsection (e)(7) would not "contribute appreciably to individual privacy," since the Privacy Act generally prohibits the public disclosure of information contained in agency files. Pet. App. 9a; see 5 U.S.C. 552a(b). Exceptions to that general bar exist for, *inter alia*, records the disclosure of which is required by the FOIA. See 5 U.S.C. 552a(b)(2). The FOIA itself, however, exempts "records or

3. Petitioner contends (Pet. 19-21) that the court of appeals' ruling in this case conflicts with the decision of the Seventh Circuit in *Becker* v. *IRS*, 34 F.3d 398, 407-409 (1994). In *Becker*, the Internal Revenue Service maintained files on the plaintiffs that included "a flyer advertising a book and a collection of newspaper articles regarding various IRS actions against certain individuals and groups who are alleged tax protesters or cheats." *Id.* at 408. The documents contained no reference to the plaintiffs. *Ibid.* The court of appeals accepted the district court's conclusion that inclusion of those materials in plaintiffs' files could be said to describe the plaintiffs' exercise of First Amendment rights. *Ibid.* The court "conclude[d] that the IRS ha[d] not carried its burden in establishing that the materials are exempt from Privacy Act requirements," and it ordered that "the documents should be expunged." *Id.* at 409.

No circuit conflict exists, since the factual setting addressed by the *Becker* court is markedly different from that at issue here. Although the *Becker* court noted in passing that the documents in question were "contained in files which were closed in April 1991," 34 F.3d at 408, its principal concern was the absence of any apparent connection between the plaintiffs and the events described in the articles, see *id.* at 409. Indeed, the Seventh Circuit did not squarely address the question whether the files in question had *ever*

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information compiled for law enforcement purposes * * * to the extent that the production of such law enforcement records or information * * * could reasonably be expected to constitute an unwarranted invasion of personal privacy." 5 U.S.C. 552(b)(7)(C). In the present case, petitioner has identified no instance in which the Bureau released to the public information in his file.

been pertinent to an authorized law enforcement activity.[9] *Becker*, moreover, did not involve counterintelligence operations. Because successful counterintelligence often requires the agency to correlate seemingly unrelated (and seemingly innocuous) events occurring over a broad span of time, the need to preserve information for which no current necessity exists is particularly acute. In contrast to *Becker*, the material at issue here relates directly both to petitioner and to the underlying counterintelligence investigation.

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[9] Indeed, the *Becker* court's discussion of possible future uses of the material in an authorized law enforcement activity (see 34 F.3d at 408) may well reflect only that, in the circumstances of that case, such future use was the only conceivable justification for maintenance of the records, since there was no apparent nexus to any past or ongoing law enforcement activity concerning the plaintiffs. See also *ibid.* ("to the extent that the IRS has engaged in the practice of collecting protected information, unconnected to *any* investigation of *past, present or anticipated violations* of the statutes which it is authorized to enforce, subsection (e)(7) of the [Privacy] Act has been violated") (quoting *Clarkson* v. *IRS*, 678 F.2d 1368, 1375 (11th Cir. 1982), cert. denied, 481 U.S. 1031 (1987)) (emphasis added).

CONCLUSION

The petition for a writ of certiorari should be denied.

Respectfully submitted.

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